

Global talent mobility



YOUR IMMIGRATION OBLIGATIONS

Important information regarding YOUR Immigration Responsibilities and Obligations.

Dear Employee

RE: Skilled Worker - IMMIGRATION STATUS

I am writing to confirm that you have been approved to take employment in the United Kingdom with Virtusa UK Limited or Virtusa Consulting & Services as a sponsored migrant under Skilled Worker of the UK immigration regime - the Points Based System. This letter contains important information regarding your rights and responsibilities whilst in the UK. Please ensure that you read this information carefully and contact me if you have any concerns.

Your full leave conditions are contained on your Biometric Residence Permit (BRP) which you must collect on arrival in the UK.

You are free to enter and depart from the UK during your assignment, until the expiry date of your BRP Card. Each time you travel to the UK, you merely need to present your passport containing the visa to the immigration authorities at the port of entry on arrival. As a 'sponsored migrant', Immigration Officers may ask you if you remain sponsored by the same employer when you seek re-entry to the United Kingdom. Providing there have been no substantive changes to your employment you will be re-admitted, and your passport will be endorsed with your date of entry.

As a sponsored migrant, you and Virtusa are under an obligation to report specific activities or events to the Home Office.

Any failure to inform us of your changes will result in putting the company's Sponsor Licence at risk of non-compliance. Please ensure to keep us informed of your changes at all times.

In particular, Virtusa must report the following:

- If you fail to turn up for work on the start date as endorsed on your CoS;
- If you are absent from work for more than 10 working days without permission;
- If you receive a promotion or a change of job title);
- If your job duties change;
- If there is a change to your place of work (i.e. you move work location);
- If you receive a salary increase outside of an annual allocation;
- If your salary package is changed so that you no longer receive any guaranteed allowances;
- If your salary package is changed to include guaranteed allowances;
- If your salary is temporarily reduced due to taking, for example, maternity leave, paternity leave, adoption leave, long-term sick leave etc.;
- If you take a period of unpaid leave (you are permitted to take no more than four weeks' unpaid leave in any 12 month calendar period - January to December - which four week period is calculated on your normal working pattern, e.g. if you work a 3 day week, you may take 12 days' unpaid leave each year / if you work a 5 day week, you may take 20 days' unpaid leave each year)
- If your contract of employment is terminated;
- If you cease to be sponsored by Virtusa for any other reason (this could include if you change immigration category or resign from the company);
- If you have applied for another visa with another sponsor or your own visa, you must inform us at the time you have applied and not wait for the new visa to be issued;
- The end date of your UK secondment, together with the date of your departure from the country.
- If you are planning to change your visa status. You must let us know prior to making any new applications and once you get a new BRP card it will replace your Virtusa BRP Card. If you do change your visa status and get a new BRP card, DO NOT return your BRP card to the Home Office or DESTROY the old BRP card without checking with Mobility team prior.

Please be aware that if there is any significant change in your role, you must inform us before the change takes place so that we can ensure your new/altered role falls within the parameters of the Code of Practice under which your CoS has been assigned, and that you do not breach the conditions of your immigration status.

A copy of your Certificate of Sponsorship (CoS) has been shared with you. You should notify the Europe Mobility Team immediately any changes as listed above are made to your UK employment in order that we can take appropriate action to report these against your CoS. Any subsequent SMS entries made against your CoS will be forwarded to you.

Virtusa is under an obligation to see and take a copy of your passport, entry clearance visa and BRP confirming that you have the right to remain and work in the UK on your first day of employment. This check will either be carried out by the Europe Mobility Team in London or a Virtusa manager at the client site where you will be working.

If your BRP is not available on your first working day, a second right to work check of your original passport and original BRP will be carried out once you have collected the card, either by the Europe Mobility Team in London or by a Virtusa manager on-site.

During your assignment, you must ensure that the Europe Mobility Team in London has up to date contact details for you, including your UK residential address, telephone numbers (home, work and mobile), personal e-mail address etc. Please inform the Immigration / HR Department in London if any of your details change.

Anyone who has entered the UK illegally, worked illegally, overstayed for more than 28 days or used deception in a visa or other application, will be banned from entering the UK for a fixed period of between one and ten years. It is therefore critical that you abide by the conditions of your visa and do not stay beyond the expiry date of your leave to remain.

As a Skilled Worker Migrant, you can extend your stay from within the UK to bring your total period of leave to 6 years. You should contact the Europe Mobility Team in London 3 months prior to your leave expiry date, in order that steps can be taken to prepare your extension application. Please be aware that it is an offence to remain in the UK beyond the expiry date of your leave to remain without making a formal application to extend your stay, and overstaying your leave could lead to removal from the UK or a ban on future applications to enter.

Once you are eligible for ILR, you are responsible for making the application in time and the company does not cover the cost for these applications. You must inform us that you are planning to change to ILR and share the new BRP cards with us once received.

Please also be aware that anyone who has entered the UK illegally, worked illegally, overstayed for more than 28 days or used deception in a visa or other application, will be banned from entering the UK for a fixed period of between one and ten years. It is therefore critical that you abide by the conditions of your visa and do not stay beyond your visa expiry date.

Please note, you cannot be on unpaid leave for more than 4 weeks within a calendar year, your visa will be cancelled in this case.

Should you have any questions concerning the contents of this letter or your new immigration status, please do not hesitate to contact UK Immigration team.

Kind regards.

Yours sincerely

Europe Mobility Team

•
virtusa.com

132 Turnpike Rd., Suite 300, Southborough, MA 01772

© 2023 Virtusa Corporation.
All Rights Reserved.

